

FORMAL ADA CIVIL RIGHTS GRIEVANCE

City of Bloomington, Indiana

Public Sidewalk at 202 E. 6th Street — Nineteen-Year Surface Degradation and the Abutting-Owner Ordinance Defense

Submitted to:	Michael Shermis, ADA Coordinator / Human Rights Commission Director, City of Bloomington
City:	City of Bloomington, Indiana
Date:	August 5, 2026
Re:	ADA Non-Compliance — Public Sidewalk, 202 E. 6th Street (Fronting the Monroe County History Center): Persistent, Undocumented, Nineteen-Year Degradation to a Loose-Aggregate Surface, and the City's Reliance on an Abutting-Owner Maintenance Ordinance to Decline Repair

1. Introduction and Overview

This document constitutes a formal civil rights grievance filed pursuant to Title II of the Americans with Disabilities Act of 1990 (42 U.S.C. § 12131 et seq.) [1]. It concerns the public sidewalk on the south side of E. 6th Street immediately fronting the Monroe County History Center, 202 E. 6th Street, Bloomington, Indiana — one block from the Monroe County Courthouse square and along a corridor the complainant regularly uses to travel between Indiana University and downtown.

The facts are straightforward. A Google Street View image dated August 2007 shows this stretch of sidewalk in a materially better condition than it is today (Fig. 1). Photographs taken by the complainant on August 1, 2026 (Figs. 2–6) document a walking surface that has broken down to the consistency of loose aggregate across multiple panels and expansion joints. The surface is neither firm, nor stable, nor slip-resistant, as required by the 2010 ADA Standards [2] and by PROWAG [3], which the City adopted by Resolution 2011-99 [4].

The complainant has raised this location with City officials, who have acknowledged that the surface is not PROWAG-compliant but have declined to repair it, citing Bloomington Municipal Code § 12.04.010 [5], which assigns sidewalk repair responsibility to the abutting property owner — here, the Monroe County Historical Society, Inc. [6], the private nonprofit that owns 202 E. 6th Street. As explained in Section 4 below, an ordinance of this kind does not relieve the

City of its own Title II obligations; Indiana's own courts have said so directly, in a context that is instructive even though the holding there addressed tort liability rather than the ADA.

2. Applicable Regulatory Framework

2.1 Program Accessibility — Primary Basis (28 C.F.R. § 35.150)

No City alteration is documented at this location, so the primary basis for this complaint is 28 C.F.R. § 35.150(a) [1], which has required since January 26, 1992 that a public entity operate each service, program, or activity so that it is, when viewed in its entirety, readily accessible to and usable by individuals with disabilities. Under § 35.150(d) [1], public entities of the City's size were required to complete the structural changes necessary to achieve program accessibility no later than January 26, 1995 — a deadline that has been in force for over thirty years. A downtown sidewalk connecting Indiana University to the central square, whose surface has been steadily decomposing over nineteen years to the point of being unsafe for wheelchair users, is directly relevant to whether the City's pedestrian network is accessible when viewed in its entirety.

This is one documented barrier, not a claim that this barrier alone renders the entire pedestrian program non-compliant. It is offered as evidence relevant to that program-wide assessment.

2.2 The Compliant-to-Non-Compliant Transition Triggers the Maintenance Obligation (28 C.F.R. § 35.133)

The ADA does not require a public entity to immediately retrofit every sidewalk to current accessibility standards; program accessibility is achieved over time, including through a transition plan. That general latitude does not apply, however, once a surface that was compliant, or substantially so, degrades into non-compliance through documented surface failure. At that point the narrower and firmer obligation of 28 C.F.R. § 35.133 [1] is triggered directly: a public entity shall maintain in operable working condition those features that are required to be accessible, and a surface that has failed is no longer being maintained in that condition. The regulation excuses only isolated or temporary interruptions due to maintenance or repair; a documented, multi-year decomposition is neither.

The photographic record here supports exactly that trajectory. The August 2007 Street View image (Fig. 1) shows a walking surface without the loose-aggregate failure documented in 2026, though close inspection of that image shows the early stages of the same joint deterioration now visible in its advanced state in Figures 2 through 6. The City's obligation to repair this surface does not depend on any claim that the surface must be brought to current standards on some fixed citywide schedule; it rests on the narrower point that whatever compliance the surface had

as of 2007 has since been lost to documented, ongoing failure, and that loss itself triggers the repair obligation.

2.3 Applicable Technical Standards

2010 ADA Standards for Accessible Design, § 302 (Floor or Ground Surfaces) [2]: ground surfaces along accessible routes shall be stable, firm, and slip resistant.

PROWAG R302 (Surfaces) [3]: the surfaces of pedestrian access routes and elements and spaces that connect to them shall be firm, stable, and slip resistant.

PROWAG R203.3 (Pedestrian Circulation Paths) [3]: a pedestrian access route complying with R302 shall be provided within pedestrian circulation paths, including sidewalks.

The City adopted PROWAG as its technical standard for pedestrian facilities in the public right-of-way by Board of Public Works Resolution 2011-99 [4], and reaffirmed that adoption in its 2026 ADA Transition Plan (draft) [7].

3. Description of the Barrier and Documented Conditions

3.1 Location and the Nineteen-Year Record (2007–2026)

The sidewalk at issue runs along the E. 6th Street frontage of the Monroe County History Center property, on the south side of the street, one block east of the Monroe County Courthouse square. The Google Street View image below is dated August 2007 on its face and is low-resolution, but shows a continuous, comparatively smooth walking surface, without the loose-aggregate failure documented in 2026. Close inspection of this image also shows the early stages of joint and edge deterioration in the same locations where the surface has since failed outright — the image documents both a materially better condition than exists today and the beginning of the process that produced today's condition. The complainant's photographs from August 1, 2026, taken in sequence over approximately one minute along this stretch, show a surface that has broken down to exposed, loose aggregate at multiple panel joints and across large sections of at least two adjoining slabs, with the aggregate loose enough to shift underfoot.

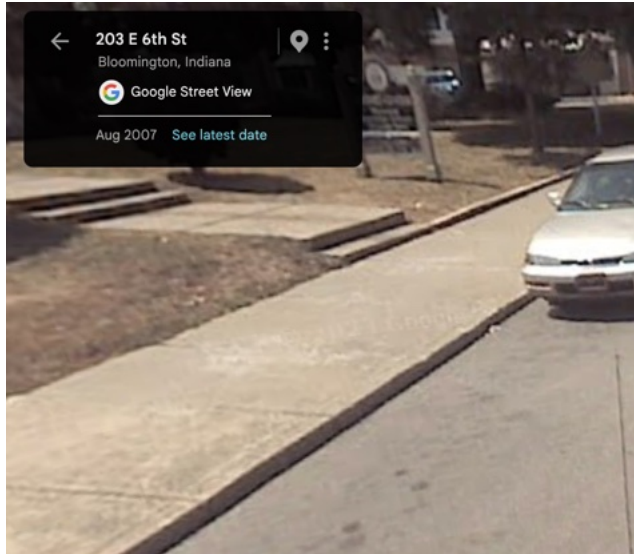


Fig. 1: Google Street View, dated August 2007 on its face. Google's location panel identifies the nearest indexed address as 203 E. 6th St.; the sidewalk and steps shown are the History Center's E. 6th St. frontage at 202 E. 6th St., across the street. The surface here is materially more intact than in the 2026 photographs below, though close inspection shows incipient joint deterioration in the same areas that have since failed.

3.2 Current Conditions, August 1, 2026

Figures 2 through 6 below, taken in sequence over approximately one minute, document the same stretch of sidewalk.



Fig. 2: Complainant's photograph, August 1, 2026. View of the sidewalk from the west; a parking meter is visible on the left.



Fig. 3: Complainant's photograph, August 1, 2026. View of the sidewalk from the east; a parking meter is visible on the right.



Fig. 4: Complainant's photograph, August 1, 2026. Adjoining panel corner at the curb, with loose aggregate extending to the sidewalk edge.



Fig. 5: Complainant's photograph, August 1, 2026, taken from the steps of the Monroe County History Center, looking down toward the sidewalk and curb.



Fig. 6: Complainant's photograph, August 1, 2026. Close-up view from the street showing the curb.

4. The City's Anticipated Defense: The Abutting-Owner Maintenance Ordinance

Bloomington Municipal Code § 12.04.010 [5] provides that property owners are responsible for keeping the sidewalks adjacent to their properties in good repair. City staff have relied on this ordinance to explain why the surface has not been repaired, on the premise that responsibility rests with the Monroe County Historical Society, Inc. [6], the abutting private nonprofit that owns 202 E. 6th Street.

This ordinance may be a valid mechanism for the City to allocate repair responsibility as between itself and abutting owners, and this complaint does not ask the City to abandon it. But an ordinance of this kind does not, and cannot, relieve the City of its own obligations under Title II. The City's Title II duty runs to the public, not to whichever party it has assigned repair costs to under a local ordinance; a municipal cost-allocation mechanism is not a mechanism for shedding a federal civil rights obligation.

Indiana's own courts have addressed the purpose of ordinances of this type, in a closely analogous context. In *Carroll v. Jobe*, 638 N.E.2d 467 (Ind. Ct. App. 1994) [8], the Indiana Court of Appeals considered a City of Crown Point ordinance placing sidewalk repair responsibility on abutting landowners — in substance, the same arrangement as Bloomington Municipal Code § 12.04.010 [5]. In holding that the ordinance did not create a private duty running from the abutting owner to injured pedestrians, the court explained the ordinance's actual function:

“Both ordinances serve to aid the municipality in discharging its duty to maintain the streets and sidewalks in a reasonably safe condition.”

Carroll v. Jobe, 638 N.E.2d at 470 [8]. The court's holding was that the ordinance did not create tort liability running to abutting owners; it was not an ADA case. But its description of the ordinance's purpose is directly instructive here: an ordinance assigning sidewalk repair to abutting owners exists to assist the municipality in discharging its own underlying duty — it does not transfer that duty away, and it does not extinguish it. The municipality's duty to keep its sidewalks in a reasonably safe, usable condition is what the ordinance was written to serve, not what it was written to escape.

Applied here: whatever repair responsibility Bloomington Municipal Code § 12.04.010 [5] assigns to the Monroe County Historical Society, Inc. [6] as between the City and that abutting owner, it does not discharge the City's own Title II obligation to operate an accessible pedestrian program under 28 C.F.R. § 35.150 [1], or its § 35.133 [1] obligation to maintain accessible features in operable condition. The City's own statement to the complainant — that it has identified the surface as non-compliant but has left repair to the abutting owner — is a description of an internal allocation of responsibility, not a defense to a federal civil rights obligation the City owes directly to the public.

5. Regulatory Violations

The conditions described in Section 3 constitute violations of the following:

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|----------------------------------|--|
| 28 C.F.R. § 35.150(a) [1] | Failure to operate the City's pedestrian program so that it is, when viewed in its entirety, readily accessible to and usable by individuals with disabilities. A primary downtown pedestrian corridor has presented a non-compliant walking surface for at least nineteen years. |
| 28 C.F.R. § 35.133 [1] | Failure to maintain an accessible feature in operable working condition. The 2007 image shows a surface without the loose-aggregate failure documented in 2026; whatever compliance the surface had as of 2007 has since been lost to documented, ongoing surface decomposition, which triggers the repair |

	obligation independent of any broader citywide compliance timeline.
2010 ADA Standards for Accessible Design, § 302 (Floor or Ground Surfaces) [2]	Ground surfaces along the pedestrian access route must be firm, stable, and slip-resistant. A surface with the consistency of loose gravel satisfies none of these three requirements.
PROWAG R302 (Surfaces) [3]	Surfaces of pedestrian access routes shall be firm, stable, and slip resistant. Cited as the technical standard the City itself adopted for pedestrian facilities in the public right-of-way.
PROWAG R203.3 (Pedestrian Circulation Paths) [3]	A pedestrian access route shall be provided within pedestrian circulation paths, including sidewalks. A loose-aggregate surface across the full width of the walk does not provide a compliant pedestrian access route.

6. Remedies Requested

The complainant does not prescribe a specific repair method. Determining how to correct a failed public sidewalk surface is the City's responsibility, not the complainant's, and the remedies below are framed accordingly: they require the City to commit to a correction and to communicate its plan, not to adopt any particular technique the complainant might suggest.

Remedy A — Correction with Specific Timeline

The City shall repair the sidewalk fronting 202 E. 6th Street such that its surface complies with applicable accessibility standards, including § 302 of the 2010 ADA Standards [2] and PROWAG R302 [3]. Within 60 days of receiving this complaint, the City shall provide a specific repair timeline, identification of who will perform the work, and a point of contact through whom the complainant can verify completion. How the City arranges for that work — directly, through the abutting owner under § 12.04.010 [5], or by some other mechanism — is for the City to determine.

Remedy B — Written Acknowledgment

The City shall provide a written response addressing the regulatory violations identified in Section 5. If the City's position is that no violation has occurred, or that Bloomington Municipal Code § 12.04.010 [5] forecloses the City's own Title II responsibility, the City shall state its legal basis for that position in writing.

Remedy C — Records Production

The City shall produce any prior inspection record, correspondence, or internal note reflecting its acknowledgment that this location is not PROWAG-compliant, along with any notice issued to the abutting owner under § 12.04.010 [5] regarding this location.

7. Pattern of Non-Compliance and Systemic Concern

This complaint is one of a series of formal civil rights grievances filed with this office concerning accessibility failures in the City's pedestrian network. The pattern this complaint documents is specific: a public sidewalk surface that has been steadily decomposing over nineteen years, left unaddressed through reliance on an abutting-owner ordinance that does not, by its own terms as construed by Indiana courts, discharge the City's underlying duty. The complainant notes that the City's own 2026 ADA Transition Plan (draft) [7] describes ongoing citywide sidewalk condition assessment work; this location does not appear to have been corrected through that or any other process to date.

8. Notice of Intent to Escalate

Should the City fail to provide a substantive response within 60 days of receiving this complaint, or should the response not include the specific commitments identified in Section 6, the complainant reserves the right to submit this complaint and the City's response to the Indiana Civil Rights Commission and to the U.S. Department of Justice, Civil Rights Division, Disability Rights Section.

9. Supporting Documents and References

[1] Title II of the Americans with Disabilities Act, 42 U.S.C. § 12131 et seq.; implementing regulation 28 C.F.R. Part 35.

42 U.S.C. § 12131 (Cornell LII): <https://www.law.cornell.edu/uscode/text/42/12131>

28 C.F.R. Part 35 (eCFR): <https://www.ecfr.gov/current/title-28/chapter-I/part-35>

[2] 2010 ADA Standards for Accessible Design, U.S. Department of Justice, § 302 (Floor or Ground Surfaces).

Full text (ADA.gov PDF): <https://www.ada.gov/assets/pdfs/2010-design-standards.pdf>

[3] U.S. Access Board, Public Rights-of-Way Accessibility Guidelines (PROWAG), final rule, 36 C.F.R. Part 1190, effective October 7, 2023; R302 (Surfaces) and R203.3 (Pedestrian Circulation Paths), cited as a technical reference under the City's own 2011 adoption.

Current rule text (eCFR, 36 CFR Part 1190): <https://www.ecfr.gov/current/title-36/chapter-XI/part-1190>

[4] City of Bloomington Board of Public Works, Resolution 2011-99 (September 27, 2011), adopting PROWAG as the City's technical standard for public right-of-way infrastructure.

Reproduced as Appendix A to the City's 2026 ADA Transition Plan (draft):

<https://bloomington.in.gov/sites/default/files/2026-04/2026%20City%20of%20Bloomington%20ADA%20Transition%20Plan.pdf>

[5] Bloomington Municipal Code § 12.04.010 (sidewalk repair responsibility of abutting property owners).

Bloomington Municipal Code, Title 12 (Municode):

https://library.municode.com/in/bloomington/codes/code_of_ordinances?nodeId=TIT12STSISTSE

[6] Monroe County Beacon property record, 202 E. 6th Street, Bloomington, IN 47408, listing Monroe County Historical Society, Inc. as owner.

Monroe County Beacon parcel search (search "202 E 6th St"):

<https://beacon.schneidercorp.com/Application.aspx?App=MonroeCountyIN&PageType=Search>

[7] City of Bloomington, 2026 ADA Transition Plan (draft, April 2026).

Full PDF: <https://bloomington.in.gov/sites/default/files/2026-04/2026%20City%20of%20Bloomington%20ADA%20Transition%20Plan.pdf>

[8] Carroll v. Jobe, 638 N.E.2d 467 (Ind. Ct. App. 1994), trans. denied.

Full opinion (Justia): <https://law.justia.com/cases/indiana/court-of-appeals/1994/45a03-9309-cv-315-8.html>

[9] Photographic evidence: Figures 1 through 6 as described in Section 3. All photographs incorporated by reference.

Respectfully submitted,

[name and address redacted]

August 5, 2026

This complaint was prepared with the assistance of Claude, an AI assistant developed by Anthropic (claude.ai), and other AI assistants. All factual observations, photographic evidence, and legal conclusions reflect the complainant's own direct knowledge and are the complainant's responsibility.